

Tentative Rulings for September 4, 2026 Department 4

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 4 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 533 0910**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2204955	THAMMAVONGSA VS SANGYONE	MOTION TO VACATE JUDGMENT, RECALL WRIT OF EXECUTION, AND STAY WAGE GARNISHMENT

Tentative Ruling:

DENY

This court has already denied two motions to vacate in this matter, on 4/7/26 and on 6/22/26. Defendant filed a Response (Answer) to the Complaint on 12/7/2022 and has filed several Claims of Exemption in response to Plaintiff's efforts to garnish. Defendant cannot plausibly now claim that he has not received actual notice of this action. In addition, the relief available under CCP § 473.5 must be sought within a "reasonable time" and *in no event later than two years after entry of default judgment* or 180 days after written service of notice that default or default judgment has been entered, whichever comes first. (emphasis added) (CCP § 473.5(a); *Trackman v. Kenney* (2010) 187 Cal.App.4th 831,844.)

Here, the Judgment By Default After Trial was entered on 6/21/2024. Plaintiff did not file this Motion to Vacate until 7/8/2026, more than two years after the Judgment has been entered.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2404305	BENAVIDES VS PELAYO	MOTION TO COMPEL COMPLIANCE

Tentative Ruling:

GRANT

Records responsive to the Request for Production of Documents, Set One, to be provided to Defense counsel within 10 days.

Defendants Alexis Pelayo and Isela Jacqueline Medina Pelayo are sanctioned in the sum of \$1,530.00, payable to Defense counsel within 30 days.